

June 2, 2026

The Honorable Gus Bilirakis, Chairman
The Honorable Russ Fulcher, Vice Chairman
The Honorable Jan Schakowsky, Ranking Member
U.S. House of Representatives
Subcommittee on Commerce, Manufacturing, and Trade
2125 Rayburn House Office Building
Washington, DC 20515

Re: Statement for the Record in Support of H.R. 8413, the SECURE Data Act

Dear Chairman Bilirakis, Vice Chairman Fulcher, and Ranking Member Schakowsky:

On behalf of the Association of National Advertisers (“ANA”), we write to express support for H.R. 8413, the Securing and Establishing Consumer Uniform Rights and Enforcement over Data Act (“SECURE Data Act” or “Bill”). We appreciate that you are holding a hearing on this important legislation and encourage the Subcommittee on Commerce, Manufacturing, and Trade to favorably advance the Bill.

The ANA is the definitive voice of the marketing industry. Since 1910, we have set and advanced the agenda for marketing transformation, connecting over 1,600 member companies to an influential global network, insights and resources that drive growth. Our members represent 20,000 brands and \$400 billion in annual marketing investment. Through industry-leading research, the CMO Growth Council, and our proprietary Growth Agenda and Practices, the ANA empowers marketers to shape the future of marketing and create lasting impact for their organizations and the industry. ANA members have long implemented and advocated for consumer privacy protections including as a founding member of [Privacy for America](#)—a broad coalition of trade associations and companies working with Congress to pass comprehensive privacy legislation.

The SECURE Data Act is a commonsense bill that builds upon consensus approaches from state consumer privacy laws to establish key privacy protections for all U.S. consumers, regardless of their state of residence. The Bill’s approach is the result of months of the House Privacy Working Group’s thoughtful consultation with hundreds of stakeholders to develop a clear federal framework that would create critical consumer privacy protections while preserving responsible data uses that support the modern economy. Specifically, the Bill would:

- **Establish a uniform set of rights for all U.S. consumers that mirrors state privacy laws.** Nearly half of all U.S. states have enacted consumer privacy laws that give consumers certain rights over personal data processed by businesses. These states have coalesced around a set of core rights that should be available to consumers, including rights to access, correct, delete, and port data, as well as the ability to opt-out of certain data uses such as the use of data for targeted advertising, data sales, profiling, or certain automated decisions. The SECURE Data Act would build upon the important bipartisan work already done by states to extend these key rights to all U.S. consumers, ensuring that individuals nationwide can exercise the same rights no matter where they live.

- **Preserve routine and responsible data uses that unlock immense benefits for consumers and the economy.** Existing state consumer privacy laws uniformly preserve beneficial data uses—including data-driven advertising—that help businesses to spur innovation, develop new beneficial products and services, and support robust competition in today’s fast-growing online marketplace. Advertising is a cornerstone of the U.S. economy, with one study estimating that, in 2024 alone, advertising supported more than 29 million jobs and \$10.4 trillion in annual sales—more than 20 percent of the U.S. Gross Domestic Product (“GDP”).¹ Small and start-up businesses especially rely upon data-driven advertising to connect with audiences and compete effectively with more established market players.² Consumers similarly reap significant benefits from the vast amount of free and low-cost information and content subsidized by online advertising, with one study estimating that each consumer derives more than \$30,000 in annual value through the low-cost information and services made available on the ad-supported Internet.³ Similar to existing state privacy laws, the SECURE Data Act would continue to permit these responsible data uses that fuel competition and the modern U.S. economy.
- **Support robust enforcement mechanisms, including industry self-regulatory efforts that protect consumers.** The SECURE Data Act would provide for strong enforcement by coupling FTC enforcement authority with state attorney general enforcement that aligns with the enforcement approach adopted by state consumer privacy laws. Moreover, the Bill would recognize that industry self-regulation already provides important protections for consumers. The ANA has long championed industry self-regulation related to privacy, including through enforcement of the *ANA Ethics Code of Marketing Best Practices* (“Ethics Code”).⁴ The SECURE Data Act would help support ongoing industry efforts by allowing approved codes of conduct to create a rebuttable presumption of compliance, which could help standardize compliance across the market and focus enforcement on bad actors.

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Thank you for your consideration of our views as you contemplate ways to best provide privacy protections to consumers while preserving the beneficial data uses that fuel the modern economy. Please do not hesitate to contact us with any questions regarding this submission.

Sincerely,



Christopher Oswald
Group Executive Vice President & Head
of Law, Ethics, and Government Relations
ANA

CC: Members, U.S. House of Representatives Committee on Energy and Commerce

¹ See S&P GLOBAL, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY 2024-2029 at 4 (Aug. 2025) [hereinafter “ECONOMIC IMPACT OF ADVERTISING”], located [here](#)

² See J. Howard Beales & Andrew Stivers, *An Information Economy Without Data*, 8-9 (2022), located [here](#).

³ See *id.* at 2.

⁴ ANA, Ethics Code of Marketing Best Practices, 6 (last modified April 30, 2025), available [here](#); see also ANA, ANA Ethics Compliance Report: January-December 2025, 49, available [here](#) (describing enforcement actions).